



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36163687

Date: JAN. 23, 2025

Appeal of Nebraska Service Center Decision

Form I-131, Application for Travel Document

The Applicant seeks a refugee travel document under section 208(c)(1)(C) of the Immigration and Nationality Act (the Act), 8 U.S.C. § 1158(c)(1)(C). An applicant for a refugee travel document must file the application while in valid refugee status under section 207 of the Act or valid asylum status under section 208 of the Act, 8 U.S.C. § 1158, or must be a permanent resident who received such status as a direct result of his or her asylum or refugee status. 8 C.F.R. § 223.2(b)(2). An applicant for a refugee travel document must file a Form I-131, Application for Travel Document (Form I-131) while in the United States. 8 C.F.R. § 223.2(b)(1).

The Director of the Nebraska Service Center denied the application, concluding that the Applicant was ineligible for a refugee travel document because the record did not establish that the Applicant was physically present in the United States when he applied for the refugee travel document. Specifically, the Director determined that the Applicant traveled abroad on June 18, 2024, and returned to the United States on September 17, 2024; therefore, the Applicant was not physically present in the United States when he filed his Form I-131 on June 28, 2024. The Director cited to the regulation at 8 C.F.R. § 103.2(a)(7)(i). The matter is now before us on appeal. 8 C.F.R. § 103.3.

The Applicant bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

On appeal, the Applicant contends that he gathered and signed all necessary documents prior to his departure and gave his Form I-131 to a family member to mail, but that he was unaware that the Form I-131 had to be filed prior to his departure. He explains that he was ordered to travel abroad to fulfill his religious obligations and asks that denial of his Form I-131 be reconsidered.

The regulation at 8 C.F.R. § 103.2(a)(7) provides, in pertinent part:

- (i) USCIS will consider a benefit request received and will record the receipt date as of the actual date of receipt at the location designated for filing such benefit request whether electronically or in paper format.

We acknowledge the Applicant's assertion that he prepared his Form I-131 prior to his departure and was unaware that it must be filed when an applicant is physically present in the United States. However, the Applicant was outside the United States when the application was properly filed on June 28, 2024, and neither the Act nor the regulations provide for an exception to the pre-departure filing requirement in 8 C.F.R. § 223.2(b)(1). Accordingly, the Applicant is ineligible for a reentry permit because he has not shown that he filed his application while in the United States.¹

ORDER: The appeal is dismissed.

¹ Although he cannot obtain a reentry permit through this application, the Applicant is not precluded from filing a new application when he is physically present in the United States in lawful permanent resident status.